

SENATE No. 2789

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant and Kimberly N. Ferguson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for recall elections in the town of Rutland.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>

SENATE No. 2789

By Mr. Durant and Ms. Ferguson of Holden, a joint petition (accompanied by bill, Senate, No. 2789) of Peter J. Durant and Kimberly N. Ferguson (by vote of the town) for legislation to provide recall elections in the town of Rutland. Election Laws. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for recall elections in the town of Rutland.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Any holder of an elective office in the town of Rutland may be recalled
2 therefrom by the registered voters of the town as hereinafter provided. No recall petition shall be
3 filed against an elected officer: (i) within 6 months after taking office; (ii) within 6 months of the
4 expiration of their elected term; or (iii) in the case of an officer subjected to a recall election and
5 not recalled thereby, until at least 6 months after the special recall election.

6 Section 2. (a) Two hundred (200) or more registered voters of the town of Rutland may
7 initiate the recall process by filing with the Town Clerk a recall affidavit signed under the
8 penalty of perjury. The recall affidavit shall contain the name and office of the officer sought to
9 be recalled and a statement of grounds of recall. The recall affidavit shall identify the person who
10 shall serve as the lead petitioner for interactions with the Town and the names of the first 10
11 signers of the recall affidavit, which names will be printed on the recall petition prepared under
12 section 4 of this act.

(b) If the elected Town Clerk is the subject of the recall affidavit, the assistant town clerk shall perform the duties of the town clerk in connection with the recall affidavit, petition, and special recall election; provided, however, notwithstanding the provisions of section 14 of chapter 41 of the general laws, the Select Board may appoint a temporary town clerk to instead perform the duties of the town clerk as specified in this subsection.

(c) The Town Clerk shall, within 3 business days following the date of such filing under subsection (a), certify in writing thereon the number of signatures which are names of voters in the town as of the date of such affidavit was filed with the Town Clerk.

Section 3. Upon certification by the Town Clerk, the Clerk shall, within 3 business days, notify the lead petitioner by e-mail or telephone of the availability of petition blanks. The petitions shall:

- (i) bear facsimiles of the Clerk's signature and official seal;
- (ii) be dated and addressed to the Select Board;
- (iii) demand the recall of the name and office of the elected official to be subject to recall and the grounds of recall as stated in the affidavit; and
- (iv) demand the election of a successor to such office.

Said recall petition shall be returned and filed with the Clerk within 21 days following the date the lead petitioner was notified of the availability of the petition and shall be signed by not less than 10% of the qualified voters of the town as of the date the affidavit was filed with the Clerk. Every signature must be accompanied by the signer's place of residence, giving the street and number, and, if a multifamily dwelling, the particular dwelling unit. The Clerk shall

34 forthwith submit the recall petition to the Board of Registrars of Voters which board, within 5
35 business days after receipt, certify in writing thereon the number of signatures which are names
36 of voters in the town as of the date the recall affidavit was filed with the Clerk.

37 Section 4. If the petition shall be found and certified by the Board of Registrars of Voters
38 to be sufficient, the Town Clerk shall, not later than the next business day, submit with the
39 Clerk's certification therein to the Select Board. The Select Board shall forthwith give written
40 notice to said elected officer whose recall is being sought of the receipt of said certificate and, if
41 the officer sought to be removed does not resign within 5 business days, shall forthwith order a
42 recall election to be held on a day fixed by them not less than 64 calendar days nor more than
43 ninety (90) calendar days after the date the Select Board calls for the recall election. However, if
44 any other town election is to occur within 100 days after the date of said certificate, the Select
45 Board may, at its discretion, call for a special election to be held on the same date as the other
46 election. If a vacancy occurs in said office after a recall election has been so ordered, the election
47 shall nevertheless proceed as in this section provided.

48 Section 5. The incumbent shall continue to perform the duties of the office until the recall
49 election. If the official is not recalled, the incumbent shall continue in the office for the
50 remainder of the unexpired term, subject to recall as before, except as provided in this act. If the
51 official is recalled in the recall election, the official shall be deemed removed upon the election
52 of their successor, who shall hold office during the unexpired term. If the successor fails to take
53 office within 10 business days after receiving notification of their election, the office shall be
54 deemed vacant and shall be filled in accordance with law.

Section 6. Ballots used in a recall election shall submit the following propositions in the order indicated: For the recall of (name of official) from the office of _____

Against the recall of (name of official) from the office of _____

Immediately at the right of each proposition, there shall be an oval above which reads "vote for one", or its equivalent. The voter, by filling in said oval, may vote for either of such propositions. Under the propositions shall appear the words "Candidates" and the directions to the voters as required by MGL Chapter 54, section 42. Beneath this, listed alphabetically, shall appear the names of the candidates nominated as provided by law.

If a majority of the votes cast on the recall question is in favor of the recall, the elected official shall be recalled and the ballots for the candidates shall be counted. The candidate who received the higher number of votes shall be elected to the office. If a majority of the votes cast on the recall question is in the negative, the votes for candidates shall have no legal effect.

Section 7. Any elected official sought to be recalled shall not be a candidate to succeed himself. The nomination of candidates, the publication of the warrant for the recall election, and the conduct of the same shall all be in accordance with the provisions of law relating to elections unless otherwise provided by this act.

Section 8. Any person who has been removed from an office under this act or who has resigned from office following the issuance of recall petitions under section 4, and before the certification of the results of the special recall election, shall not be appointed to any town office, board, commission, or committee within 1 year after such removal or resignation.

Section 9. This act shall take effect upon its passage.